

Form No. HCJD/C-121
ORDER SHEET
LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Crl. Misc. No.24743-M of 2024
Afshan Hussain, etc.. Vs. Muhammad Shahzad, etc.

Sr. No. of order of proceeding	Date of order of proceeding	Order with signature of Judge, and that of Parties or counsel, where necessary
	26.06.2025	Mr. M. Arfan Ashiq Kalair, Advocate for petitioners. Ms. Sumaira Shafi, DDPP. Mian Junaid Razaq, Advocate for respondent No. 1.

This petition is aimed at calling in question the *vires* of order dated 07.12.2023 passed by the learned Magistrate Section.30 Lahore Cantt which was further affirmed through order dated 03.04.2024 passed by learned Additional Sessions Judge, Lahore.

2. Arguments heard and record perused.
3. Perusal of record reveals that three cheques valuing Rs.14,00,00,000/- were alleged to be issued by Mst. Afshan Hussain (petitioner No.1) on the basis of which two F.I.R Nos. i.e.491/2021 and 281/21 were got registered against her, however, the stance of respondent No.1 was found false and accordingly the F.I.Rs were cancelled in accordance with law. Prior to filing of complaint, Muhammad Shahzad (respondent No.1) filed petition under section 22-A / 22-B Cr.P.C. for the registration of criminal case but same was found to be devoid of force as no cognizable offence was made out from the contents of petition, therefore, said petition was dismissed by the learned Ex-Officio Justice of Peace Lahore vide order dated 04.11.2022. The order of the learned Ex-Officio Justice of Peace was further assailed before this Court through W.P.No.70137 of 2022 which was disposed of vide order dated 22.11.2022 with the observation that “respondent No.1 shall also entertain the version of the petitioner Muhammad Shahzad in the light of the

judgment of Hon'ble Supreme Court of Pakistan titled "Mst. Sughran Bibi Vs. The State (PLD 2018 SC 595).

4. It is equally important to mention here that regarding the tempering in the cheque in question, Mst. Afshan Hussain (petitioner No.1) also got issued a criminal case vide F.I.R.No.2546/2022 under section 420, 468 & 471 PPC against respondent No.1 and during the thorough investigation of the aforementioned case F.I.R. it came to light that said cheque was tempered by respondent No.1 and in this regard report from the PFSA, Lahore is very much relevant which is reproduced below for reference sake:-

After careful examination and comparison of the questioned signature of Afshan Hussain on item no.1.1.1 with routine signatures of Afshan Hussain on items nos.1.1.2. 1.2.2.1 to 2.3 and with dictated signature exemplars of Afshan Hussai on item no. 1.3 it is not concluded that the questioned signature on item no.1.1.1 is not written by Afshan Hussain. Therefore, Afshan Hussain is not the author of the questioned signature on item no.1.1.1.

5. From the above discussion, it is evident that matter was admittedly between Mst. Afshan Hussain (petitioner No.1) and respondent No.1 because the signatures was alleged to be of Mst. Afshan Hussain (petitioner No.1), however, respondent No.1 filed complaint under section 200 for the offences under section 420, 468, 471 & 489-F PPC before learned Judicial Magistrate police station Defence C Lahore and not only implicated Mst. Afshan Hussain (petitioner No.1) as proposed accused but also implicated Masood Ijaz Hussain, Shakeel Ahmed and Muhammad Ahmed who are neither signatory of the cheque nor they were privy to the matter in any manner whatsoever. Besides implicating these persons, not a single allegation was leveled against them whereas the learned Judicial Magistrate admitted the complaint on a flimsy ground with the observation that sufficient incriminating material is available on record to proceed against the respondents-proposed accused persons without discussing the nature and value of such material. As per law, the complaint is to state the facts to satisfy

the Court of the existence of every ingredient of alleged offence, otherwise, complainant would not be entitled to invoke aid of the Court and to foist travails of criminal trial on a person, accused by him. In order to constitute offence, complainant must disclose existence of both basic ingredients namely unlawful act “**actus rea**” and criminal intent “**mens rea**” on the part of accused. Before issuing process, the Court is under obligation to satisfy itself for the purpose of ascertaining the truth or falsehood of the complaint as to the existence or non-existence of sufficient grounds to issue process against the accused. Main object of dealing with the examination of complaint under Section 200 Cr.P.C. is to protect the public from false, frivolous and vexatious complaints filed against them. Court cannot proceed to issue process against accused until and unless, it is satisfied that prima facie case has been made out against those who are accused of the alleged criminal offence. Reliance in this regard is placed upon the case reported as *Ghulam Hyder v. The Special Judge, Anti-Corruption (P) Hyderabad and 5 others* (2020 MLD 634). In another case reported as *Muhammad Rajar v. The State through Prosecutor General Sindh and others* (PLD 2025 Supreme Court 40), the Honorable Supreme Court of Pakistan observed as under:

“The provisions of Sections 202, 203, and 204 of the Cr.P.C. require trial courts to conduct a thorough examination of the evidence supporting allegations made against individuals. In this context, the trial court must consider not only the factual basis for the accusations but also the underlying purpose of bringing those charges forward. This includes evaluating whether there is a legitimate objective behind the allegations or if they serve to unjustly target or harass the accused. Moreover, the trial court should assess the possibility of victimization, ensuring that individuals are not subjected to legal actions that could lead to unnecessary distress or humiliation.”

6. In view of the above discussion, this Court is of the considered view that the findings rendered by the learned Judicial Magistrate has no backing from any legal justification

because neither oral nor any documentary evidence is available in order to connect the petitioners with the commission of offence whereas the learned Magistrate while passing the impugned order should have been oblivious of the fact that respondent No.1 has filed complaint as counterblast who himself is guilty of offence for which a separate criminal case had already been registered against him and after remaining successful at all the forum to achieve his nefarious designs, he filed the instant private complaint against petitioners who were pressing hard since long on the basis of criminality of respondent No.1.

7. As a sequel to above, order dated 07.12.2023 passed by the learned Magistrate Section.30 Lahore Cantt as well as order dated 03.04.2024 passed by learned Additional Sessions Judge, Lahore are in sheer violation of law. Resultantly, same are hereby set-aside. As a sequel therefore, instant petition stands accepted in above terms.

(Abher Gul Khan)
Judge

Approved for reporting

JUDGE

Abdul Rehman